

MORTGAGE DEED
(Simple Mortgage for Home Loan)

Document No. 9234/2008
Registered at Office of the Sub-Registrar,
SRO V-A (Hauz Khas), New Delhi on 12th August 2008

THIS MORTGAGE DEED is made and executed on this 10th day of August, Two Thousand and Eight (10-08-2008) at New Delhi.

B E T W E E N

MR. VIKRAM SINGH CHAUHAN, son of Shri Harbhajan Singh Chauhan, aged about 38 years, Indian Inhabitant, residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, PAN: BKCPC8834M (hereinafter referred to as the "MORTGAGOR", which expression shall, unless repugnant to the context or meaning thereof, include his heirs, legal representatives, executors, administrators, successors and permitted assigns) of the FIRST PART;

AND

AXIS BANK, a banking company incorporated under the Companies Act, 1956, having its Head Office at 7, Bhikaji Cama Place, New Delhi - 110066, and acting through its South Extension Branch, Ring Road, South Extension Part-I, New Delhi - 110049, represented herein by its authorized officer MR. SURESH BAHADUR, Chief Manager, duly authorized vide Board Resolution dated 22nd July 2008 (hereinafter referred to as the "MORTGAGEE" or the "BANK", which expression shall, unless repugnant to the context or meaning thereof, include its successors and assigns) of the SECOND PART.

The MORTGAGOR and the MORTGAGEE are hereinafter individually referred to as the "Party" and collectively as the "Parties."

W H E R E A S

- A. The Mortgagor is the sole and absolute owner in possession of ALL THAT residential flat being Flat No. 8 situated on the Fourth Floor of the building erected on Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, admeasuring approximately 1200 (One Thousand Two Hundred) square feet of super built-up area, more fully described in the Schedule of Property hereunder written (hereinafter referred to as the "Mortgaged Property" or the "Said Flat").
- B. The Mortgagor acquired the Said Flat by virtue of a Sale Deed bearing Document No. 5847 of the year 2005, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, executed in his favour and the same has been in his continuous, peaceful and uninterrupted possession and enjoyment since the date of purchase.
- C. The Mortgagor has applied to the Mortgagee for a Home Improvement Loan of Rs. 35,00,000/- (Rupees Thirty-Five Lakhs Only) for the

purpose of renovation, upgradation and structural improvement of the Said Flat.

D. The Mortgagee, after carrying out due diligence, valuation of the Mortgaged Property by its approved valuer, verification of the title documents, and being satisfied with the credit-worthiness and repayment capacity of the Mortgagor, has sanctioned a Home Improvement Loan of Rs. 35,00,000/- (Rupees Thirty-Five Lakhs Only) vide Sanction Letter Ref. No. AXIS/SE/HL/2008/1437 dated 28th July 2008, on the following principal terms:

- (i) Principal Loan Amount : Rs. 35,00,000/- (Rupees Thirty-Five Lakhs Only)
- (ii) Rate of Interest : 10.25% per annum (floating), linked to the Bank's Prime Lending Rate (BPLR) as applicable from time to time
- (iii) Loan Tenure : 180 (One Hundred and Eighty) months, i.e. 15 (Fifteen) years
- (iv) EMI : Rs. 38,247/- (Rupees Thirty-Eight Thousand Two Hundred and Forty-Seven Only) per month
- (v) Mode of Repayment : Equated Monthly Installments (EMI) through auto-debit from the Mortgagor's Savings Account No. 3125001500124987 maintained at the South Extension Branch of the Bank

E. The Mortgagor has agreed to create a simple mortgage on the Said Flat in favour of the Mortgagee as security for repayment of the aforesaid loan together with interest, costs, charges, and all other monies that may become due and payable under the terms of the loan.

F. The Parties have agreed to reduce the terms of the mortgage into writing.

NOW THIS MORTGAGE DEED WITNESSETH AS FOLLOWS:

1. OPERATIVE MORTGAGE CLAUSE

In consideration of the sum of Rs. 35,00,000/- (Rupees Thirty-Five Lakhs Only) lent and advanced by the Mortgagee to the Mortgagor (receipt whereof the Mortgagor hereby acknowledges), the Mortgagor hereby mortgages by way of Simple Mortgage under Section 58(b) of the Transfer of Property Act, 1882, the residential flat described in the Schedule of Property hereunder written, and the Mortgagor doth hereby bind himself personally to repay the said principal sum of Rs. 35,00,000/- together with interest thereon at the rate of 10.25% per annum (floating, linked to BPLR) and all other monies due hereunder, by paying monthly EMIs of Rs. 38,247/- each on or before the 5th day of each calendar month, commencing from 5th September 2008, and agrees that in the event of his failure to pay the mortgage money as herein provided, the Mortgagee shall have the right to cause the Mortgaged Property to be sold and the proceeds of the sale to be applied in payment of the mortgage money.

2. COVENANTS OF THE MORTGAGOR

The Mortgagor hereby covenants with the Mortgagee as follows:

- 2.1 REPAYMENT: The Mortgagor shall punctually and regularly pay each monthly EMI of Rs. 38,247/- and all other sums due under the loan on or before the respective due dates without any default, demand, protest or deduction.
- 2.2 INTEREST RATE VARIATION: The Mortgagor acknowledges that the rate of interest is floating and linked to the BPLR of the Bank. Any change in the BPLR shall automatically result in a corresponding change in the applicable rate of interest. The Bank shall have the right to adjust the EMI amount or the loan tenure or both, as it may deem fit, upon any such change.
- 2.3 INSURANCE: The Mortgagor shall, at his own cost and expense, keep the Mortgaged Property adequately insured against fire, earthquake, flood, and such other risks as the Mortgagee may reasonably require, for the full market value of the property or the outstanding loan amount, whichever is higher, in the joint names of the Mortgagor and the Mortgagee, and shall punctually pay all premia and produce the policy and renewal receipts to the Bank when required.
- 2.4 NO FURTHER ENCUMBRANCE: The Mortgagor shall not, without the prior written consent of the Mortgagee, create any second mortgage, charge, lien, or encumbrance of any kind whatsoever on the Mortgaged Property or any part thereof, nor shall he sell, transfer, assign, lease, or otherwise dispose of the same during the subsistence of this mortgage.
- 2.5 MAINTENANCE AND REPAIRS: The Mortgagor shall keep and maintain the Said Flat and the building in good and tenantable condition and repair and shall not commit or permit any waste or damage thereto. The Mortgagor shall not make any structural alteration or addition to the flat without the prior written approval of the Mortgagee.
- 2.6 TAXES AND OUTGOINGS: The Mortgagor shall regularly and punctually pay all municipal taxes, property tax, house tax, water and sewerage charges, electricity charges, maintenance charges payable to the Residents Welfare Association or any authority, and all other rates, taxes, cesses, assessments and outgoings of whatsoever nature in respect of the Mortgaged Property and shall produce receipts of such payments to the Bank on demand.
- 2.7 INSPECTION: The Mortgagor shall permit the Mortgagee, its officers, representatives and agents to enter upon and inspect the Mortgaged Property at all reasonable times upon reasonable

notice.

2.8 TITLE DOCUMENTS: The Mortgagor has deposited the original Sale Deed No. 5847/2005 and all other title documents, including the allotment letter, possession letter, approved building plans, completion certificate, and mutation records pertaining to the Mortgaged Property with the Mortgagee, and the same shall remain deposited with the Mortgagee until the full and final repayment of the loan.

2.9 INFORMATION: The Mortgagor shall promptly inform the Mortgagee of any litigation, notice, order, proceeding, or claim affecting the Mortgaged Property or the Mortgagor's title thereto or his ability to repay the loan.

2.10 COMPLIANCE WITH LAWS: The Mortgagor shall comply with all applicable laws, bye-laws, rules, regulations and orders of any government, municipal, local or statutory authority with respect to the Mortgaged Property.

3. EVENTS OF DEFAULT

The following shall constitute events of default under this Deed:

3.1 Failure by the Mortgagor to pay any EMI or any other sum due hereunder within thirty (30) days of the due date;

3.2 Breach by the Mortgagor of any covenant, condition, warranty or undertaking contained in this Deed or the Sanction Letter;

3.3 Any representation or warranty made by the Mortgagor herein or in the loan application being found to be untrue, incorrect or misleading in any material respect;

3.4 The Mortgagor being adjudicated as insolvent, or filing a petition for insolvency, or any attachment, distress or execution being levied against the Mortgaged Property;

3.5 The Mortgaged Property being acquired, requisitioned or materially damaged by any cause;

3.6 Any other charge, mortgage, lien or encumbrance being created on the Mortgaged Property without the prior written consent of the Bank.

Upon the occurrence of any event of default, the entire outstanding loan amount together with interest, costs, charges and expenses shall immediately become due and payable, and the Mortgagee shall be entitled to exercise all rights and remedies available to it under this Deed, the Transfer of Property Act, 1882, the Code of Civil Procedure, 1908, the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002

(SARFAESI Act), and any other applicable law.

4. SARFAESI ACT CLAUSE

- 4.1 The Mortgagor hereby acknowledges and agrees that the Mortgagee, being a secured creditor within the meaning of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (hereinafter "SARFAESI Act"), shall be entitled, without the intervention of any court or tribunal, to enforce its security interest by taking possession of the Mortgaged Property, taking over the management of the Mortgaged Property, appointing a manager to manage the same, or selling or otherwise disposing of the Mortgaged Property, in accordance with the provisions of Section 13 of the SARFAESI Act, upon the account of the Mortgagor being classified as a Non-Performing Asset (NPA) under the guidelines of the Reserve Bank of India.
- 4.2 The Mortgagor hereby waives any right to raise objections to the exercise of the rights of the Mortgagee under the SARFAESI Act, save and except such rights as may be available to the Mortgagor under Section 17 of the SARFAESI Act before the Debts Recovery Tribunal.

5. CERSAI REGISTRATION

The Mortgagor acknowledges and agrees that the Mortgagee shall be entitled and is hereby authorized to register the charge/mortgage created hereunder with the Central Registry of Securitisation Asset Reconstruction and Security Interest of India (CERSAI) established under Section 20 of the SARFAESI Act, 2002, and the Mortgagor shall cooperate and provide all such information and documents as may be required for the purpose of such registration. The cost of CERSAI registration shall be borne by the Mortgagor.

6. REPRESENTATIONS AND WARRANTIES OF THE MORTGAGOR

The Mortgagor hereby represents and warrants to the Mortgagee that:

- 6.1 He is the sole, absolute and lawful owner of the Mortgaged Property and has good, clear, marketable and undisputed title to the same, free from all encumbrances, charges, liens, attachments, claims, demands and litigation of every kind;
- 6.2 The Mortgaged Property is not subject to any agreement, option, right of pre-emption, trust, wakf, religious or charitable endowment, tenancy, leave and licence, lease or any other right in favour of any third party;
- 6.3 There are no arrears of taxes, duties, rates, cesses or outgoings whatsoever in respect of the Mortgaged Property;

- 6.4 The Mortgaged Property is free from acquisition, requisition or resumption proceedings by any government or statutory authority;
- 6.5 The Mortgagor has full power and authority to mortgage the Mortgaged Property in the manner herein contained;
- 6.6 All information and documents furnished by the Mortgagor to the Mortgagee in connection with the loan are true, correct, and complete.

7. INDEMNITY

The Mortgagor shall indemnify and keep indemnified the Mortgagee against all losses, damages, costs, charges, expenses, claims, suits, proceedings and demands of whatsoever nature arising from any breach of the warranties, covenants or conditions contained herein or arising from any defect in the title of the Mortgagor to the Mortgaged Property or from any action taken by any person claiming any right, title or interest in the Mortgaged Property.

8. STAMP DUTY AND REGISTRATION

This Mortgage Deed is executed on non-judicial stamp paper of appropriate value as prescribed under the Indian Stamp Act, 1899 as applicable in the National Capital Territory of Delhi and the Delhi Stamp (Prevention of Under-Valuation of Instruments) Rules, 2007. All stamp duty and registration charges shall be borne by the Mortgagor. This Deed shall be registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, in accordance with Section 17 of the Registration Act, 1908.

9. MISCELLANEOUS

- 9.1 GOVERNING LAW: This Deed shall be governed by and construed in accordance with the laws of India. The courts at New Delhi shall have exclusive jurisdiction.
- 9.2 NOTICES: All notices and communications under this Deed shall be in writing and delivered personally or sent by registered post / speed post to the addresses mentioned hereinabove.
- 9.3 SEVERABILITY: If any provision of this Deed is held to be invalid, illegal or unenforceable, the remaining provisions shall continue in full force and effect.
- 9.4 ENTIRE AGREEMENT: This Deed, together with the Sanction Letter and other loan documents, constitutes the entire agreement between the Parties with respect to the mortgage of the Mortgaged Property.

SCHEDULE OF PROPERTY

(The Mortgaged Property)

ALL THAT residential flat being FLAT NO. 8, situated on the FOURTH FLOOR of the building constructed on PLOT NO. 1A, in the layout / colony known as Hauz Khas Enclave, within the revenue estate of Village Hauz Khas, in the area of New Delhi Municipal Council (NDMC), New Delhi - 110016, admeasuring approximately 1200 (One Thousand Two Hundred) square feet of super built-up area (carpet area approximately 950 square feet), together with the right to use one covered car parking space in the stilt parking area and proportionate undivided share in the land and common areas of the building.

BOUNDARIES OF THE SAID FLAT:

On the North : Common passage and Flat No. 7 of the same floor
On the South : Outer wall facing the Hauz Khas District Park
On the East : Flat No. 9 of the same floor
On the West : Staircase, lift lobby and common area

BOUNDARIES OF THE PLOT:

On the North : 20 feet wide internal road of the Enclave
On the South : Plot No. 1B, Hauz Khas Enclave
On the East : Plot No. 2, Hauz Khas Enclave
On the West : 30 feet wide main approach road

IN WITNESS WHEREOF the Parties hereto have set and subscribed their respective hands and signatures on the day, month and year first hereinabove written.

MORTGAGOR:

Mr. Vikram Singh Chauhan
S/o Shri Harbhajan Singh Chauhan
PAN: BKCPC8834M

MORTGAGEE:

For and on behalf of
AXIS BANK
Mr. Suresh Bahadur
Chief Manager
South Extension Branch, New Delhi
(Under Authority of Board Resolution
dated 22nd July 2008)

WITNESSES:

1. Name : _____
Address : _____
Signature: _____
2. Name : _____
Address : _____
Signature: _____

REGISTRATION ENDORSEMENT

Presented for registration at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi on 12th August 2008 at 11:30 a.m. by Mr. Vikram Singh Chauhan (Mortgagor) and Mr. Suresh Bahadur on behalf of Axis Bank (Mortgagee), both identified by the undersigned.

Registered as Document No. 9234 in Book No. I, Volume No. _____, Pages _____ to _____, for the year 2008.

Registration Fee Paid : Rs. _____
Stamp Duty Paid : Rs. _____

Sub-Registrar
SRO V-A (Hauz Khas)
New Delhi